

HOUSE No. 3812

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas P. Walsh

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to roadway safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas P. Walsh</i>	<i>12th Essex</i>	<i>1/15/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>1/30/2025</i>

HOUSE No. 3812

By Representative Walsh of Peabody, a petition (accompanied by bill, House, No. 3812) of Thomas P. Walsh and David T. Vieira relative to the removal of ice and snow from motor vehicles. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3474 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to roadway safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1:

2 Section 36 of chapter 85 of the MGL as appearing in the 2022 edition, his hereby
3 amended by inserting at the end thereof the following:

4 Section 36A

5 Except as otherwise provided in this section, a driver of a motor vehicle or motor carrier
6 vehicle being operated on a public roadway of this Commonwealth shall make reasonable efforts
7 to remove accumulated ice or snow from the motor vehicle or motor carrier vehicle, including
8 the hood, trunk and roof of the motor vehicle or motor carrier vehicle, within 24 hours after the
9 cessation of the falling snow or ice.

Section 36A shall not apply if:

(i) the driver of the motor carrier vehicle, mass transit vehicle, bus or school bus is en route to a facility to remove accumulated ice or snow at the time of the stop under paragraph (3); or

(ii) compliance with this section would cause the driver of the motor carrier vehicle, mass transit vehicle, bus or school bus to violate any other Federal or State law or regulation regarding workplace safety or would be a threat to the health and safety of the driver.

(iii) A driver of a motor vehicle or motor carrier vehicle who violates this subsection may be stopped on a public roadway by a police officer if the police officer believes the accumulated ice or snow may pose a threat to persons or property.

2. A violation of this section shall be subject to a penalty as promulgated in chapter 85, section 36 of the Massachusetts General Laws.